Signé par Em

No. 05

COLLECTION

BUYERS

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2026 EDITION

BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It presents general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. Every real estate situation is different, and you should consult the appropriate professionals before making a decision about a transaction.

COLLECTION BUYERS · GUIDE NO. 05

Buying a Condo in Co-Ownership

Declaration, contingency fund and fees — buy with no bad surprises

The condo seduces with its simplicity: less maintenance, often well located, an affordable gateway to the property. But buying in co-ownership also means buying a part of a collective organization - with its finances, its rules and its history.

This guide teaches you how to read what really matters: the declaration of co-ownership, the health of the contingency fund, the maintenance log, insurance and the minutes. This is where the good deals hide...and the expensive pitfalls.

Each chapter ends with a “My Notes” page to record what you discover about YOUR intended co-ownership.

The condo appeals with its entry price and low maintenance, but it comes with collective living and rules that must be understood before signing. This guide teaches you how to read a building: its declaration, its contingency fund, its insurance and its minutes.

The guiding idea: in co-ownership, you don't just buy walls, you buy management. This guide gives you the grid to evaluate it.

CHAPTER

Divided co-ownership: how it works

> *Understand what you are actually buying in a condo.*

In a divided co-ownership (the classic “condo”), you are the exclusive owner of your unit (the private part) AND co-owner of the common areas (roof, structure, corridors, land, sometimes parking and storage). Your share determines your voting weight and your share of expenses.

The co-ownership association manages the building: it collects the charges, maintains the common areas, takes out insurance and applies the regulations. Buying a condo means joining this community and its decisions.

Buying a condo is buying two things at once: your unit and a part of a community. You therefore inherit common rules and collective financial health which directly influence your comfort and resale value. Hence the importance of examining the building as much as the apartment.

> EMILIE'S ADVICE
>
> *A condo is never “maintenance-free”: maintenance is simply pooled and paid for through charges. A well-managed condominium is worth gold; poorly managed one can be very expensive.*

CHAPTER

The declaration of co-ownership and the regulations

> *Read the "social contract" of the building before purchasing.*

The declaration of co-ownership is the founding document. It defines the private and common areas, the shares, the rights and obligations, and the regulations of the building.

What to check

- Are animals allowed? Are there any size or breed restrictions?
- Is rental (including short term Airbnb type) authorized or limited?
- Are there any restrictions on renovations, flooring, BBQs, noise?
- How are special responsibilities and important decisions distributed?

These rules will bind you upon purchase. It's better to know them before signing than to discover them after adopting a dog or planning to rent.

Read particularly the rules that affect your daily life: animals, noise, rental (especially short term), renovations, use of balconies and common areas. A restrictive declaration can thwart your plans; conversely, clear rules protect the tranquility and value of the building.

> EMILIE'S ADVICE
>
> *If you plan to rent your condo one day (even occasionally), check BLACK AND WHITE what the declaration allows. Many condominiums prohibit or cap rentals.*

CHAPTER

The contingency fund: the crux of the matter

> *Evaluate the financial health of the co-ownership to avoid special contributions.*

The contingency fund is collective savings intended for major future repairs (roof, facade, elevator, windows, garage). If it is undercapitalized, the co-owners will one day have to pay a “special assessment” - sometimes several thousand dollars per unit, at once.

Good reflexes

- Ask for the current provident fund amount and contribution history.
- Check if there is a recent contingency fund study (it projects the work and amounts needed).
- Consult the maintenance log: what major work has been done, which is coming?
- Be wary of an old building with very low charges: this is often a sign of insufficient funds.

2026 edition note: Quebec regulations have strengthened the obligations regarding the study of the provident fund and the maintenance log. Have the notary confirm what applies to your co-ownership.

Since recent reforms, co-ownerships must better plan their reserves via a study of the contingency fund. A well-stocked fund signals sound management; a weak fund announces special contributions. Ask for fund amount, budget and contribution history before offering.

> EMILIE'S ADVICE
>
> *Abnormally low charges are not a godsend: they are often a deferred bill. I always prefer a co-ownership with realistic expenses and a solid fund.*

CHAPTER

Insurance and reports

> *Understand who insures what and read the history of decisions.*

In co-ownership, the union insures the building and the common areas; you must insure your property, your improvements and your civil liability (co-owner's insurance). In the event of a claim, the union's insurance deductible may, in certain cases, be re-invoiced: find out more.

Meeting minutes

The minutes of the last assemblies are a gold mine: conflicts in progress, work voted on or postponed, recurring problems (infiltrations, soundproofing), general atmosphere of the co-ownership. Read at least the last two or three years.

Also check the union's insurance (amount, deductibles) and your own needs: in the event of a disaster, the building's deductible may be re-invoiced to you. The minutes of the last meetings reveal the tensions, the work to come and the important decisions - a reading that is worth gold.

> EMILIE'S ADVICE
>
> *Read the minutes like a building diary. Repeated arguments or constantly postponed work say more than any beautiful kitchen.*

CHAPTER

Reviewing documents before finalizing

> *Condition your offer on the complete examination of the co-ownership file.*

Make the examination of co-ownership documents a condition of your promise to purchase. You will obtain (often via the seller, the syndicate or an "insurance certificate/state of co-ownership") all the documents to be analyzed.

Your exam kit

- Declaration of co-ownership and building regulations.
- Financial statements, budget and amount of expenses.
- Provident fund, fund study, maintenance log.
- Minutes of the last meetings.
- Insurance certificate and statement of any special contributions.

If a document reveals a risk (empty funds, major litigation, imminent unfunded work), the condition allows you to renegotiate or withdraw.

Make document review a written CONDITION of your promise to purchase, with sufficient notice. A notary or expert can help you decode the maintenance book, declaration and finances. Better to give up in time than inherit a poorly managed building.

> EMILIE'S ADVICE
>
> *Never sign a condo without reading its financial documents. Your broker and, if necessary, your notary can help you decode what is normal... and what should scare you away.*

IN PRACTICE

Action plan

> *Your next steps, concretely.*

This week

1. Request the declaration of co-ownership and the amount of charges.
2. Obtain the provident fund balance and recent minutes.

Within 30 days

1. Have the entire co-ownership file examined before the end of the conditions.
2. Take out appropriate co-owner insurance (union deductible included).

Then

1. Validate with Emilie and the notary any doubtful points in the file.

Documents to obtain

1. Declaration of co-ownership, regulations, latest budget and financial statements.
2. Study of the provident fund and minutes of the last two years.

REFERENCES

Resources & glossary

- Co-ownership association: entity which manages the building and the common areas.
- Share: share of property of the municipalities determining charges and votes.
- Contingency fund: collective savings for major work.
- Study of the contingency fund: projection of the work and the sums necessary.
- Maintenance log: record of work carried out and to come.
- Special contribution: exceptional sum requested when the fund is insufficient.
- Private / common area: your unit vs shared spaces.
- Share: your share of expenses and votes, according to the declaration.
- Contingency fund: collective reserve for major repairs.
- Special contribution: one-off contribution when the fund is not sufficient.
- Maintenance log: history and planning of work on the building.

GO FURTHER

Quiz - test yourself

1. In a condo (divided co-ownership), you own:

A) Only the common areas

B) Your private unit AND a share of the common areas

C) The entire building

D) Nothing, you rent

2. The contingency fund is used to:

A) Pay current charges

B) Finance major future repairs

C) Pay off your mortgage

D) Pay the welcome tax

3. Abnormally low loads in an old building often signal:

A) A godsend

B) A possibly insufficient contingency fund

C) Good management

D) Nothing

4. A special contribution is:

A) A discount

B) An exceptional sum requested from co-owners

C) A municipal tax

D) A dividend

5. The declaration of co-ownership specifies in particular:

A) The resale price

B) Rules (animals, rental, renovations) and contributions

C) Your mortgage rate

D) The weather

6. Before buying, you must read the minutes because:

A) They set the price

B) They reveal disputes, work and the atmosphere of the building

C) They replace the inspection

D) They are obligatory to sign

7. In co-ownership, you must personally ensure:

A) The roof of the building

B) Your property, improvements and civil liability

C) The corridors

D) Nothing

8. The review of co-ownership documents should be:

A) Optional after purchase

B) A condition of the promise to purchase

C) Done by the neighbor

D) Ignored

9. If you want to rent your condo, check first:

A) The color of the walls

B) What the declaration of co-ownership allows

C) The price of coffee

D) School tax

Answers

1. B - Private portion + share of the municipalities (chap. 1).

2. B - This is savings for major works (chap. 3).

3. B - The invoice for the work is probably postponed (chap. 3).

4. B - It occurs when the fund is not enough (chap. 3).

5. B - It is the founding document and its regulations (chap. 2).

6. B - This is the history of decisions and problems (chap. 4).

7. B - The union insures the municipalities, you do the rest (chap. 4).

8. B - It allows you to renegotiate or withdraw in the event of risk (chap. 5).

9. B - Many co-ownerships limit rentals (chap. 2).

Make informed decisions.
Choose with confidence.
Move forward without regret.

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